

25STCV36583 25STCV36583

County: los-angeles

Division: Civil Law and Motion

Department: 511

Hearing date: 2026-07-07

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Case Number: 25STCV36583 Hearing Date: July 7, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: July

8, 2026

CASE NAME: Reginald

David Shelton Jr. v. Millennium Biltmore Hotel

CASE NO.: 25STCV36583

DEMURRER

TO COMPLAINT

MOVING PARTY: Defendant

WHB Biltmore, LLC (erroneously sued as Millennium Biltmore Hotel)

RESPONDING PARTY(S): None

REQUESTED RELIEF:

1. Demurrer

to the entire complaint as vague and ambiguous, failing to state sufficient facts to constitute a cause of action, lack of numbered causes of action, and lack of demand/prayer for relief.

TENTATIVE RULING:

1. Demurrer

to the entire complaint is SUSTAINED with leave to amend;

2. Plaintiff

shall file their amended complaint within 21 days of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On December 16, 2025, Plaintiff Regnald David Shelton Jr (Plaintiff) filed a complaint against Millennium Biltmore Hotel (Defendant) with factual allegations but no articulated causes of action or prayer for relief.

Plaintiff alleges that during a November 2023 stay at the Millennium Biltmore Hotel, the plaintiff was confronted by security, forcibly escorted, and later violently assaulted, restrained, and zip-tied by multiple guards after returning to inquire about a deposit refund. He further alleges that hotel security falsely reported to EMTs and police that he had initiated violence, leading to criminal charges and subsequent incarceration during which he experienced missed court dates, improper competency proceedings, and significant procedural irregularities. Plaintiff contends that these events caused ongoing harm, including denial of release to attend a family funeral and repeated delays in accessing the courts.

On April 14, 2026, Defendant filed the instant demurrer. Oppositions were due on or before June 24, 2026. As of June 29, 2026, the court has not received any opposition.

LEGAL STANDARD:

Meet and Confer

Prior to filing a demurrer, the demurring party is required to satisfy their meet and confer obligations pursuant to Code of Civ. Proc. § 430.41, and demonstrate that they so satisfied their meet and confer obligation by submitting a declaration pursuant to Code of Civ. Proc. § 430.41(a)(2) & (3). ˆ

Here, the meet and confer requirement is not met despite

Defendant's efforts to communicate with Plaintiff. (Greco Decl. ¶¶ 4, 6.)

Still, insufficient meet and confer is not grounds to sustain or overrule a demurrer. (CCP § 430.40(a)(4).)

Demurrer –

Sufficiency of Facts

A demurrer for sufficiency tests whether the complaint

states a cause of action. (Hahn v. Mirda (2007)

147 Cal.App.4th 740, 747.) When considering demurrers, courts read the

allegations liberally and in context. In a demurrer proceeding, the defects

must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004)

116 Cal.App.4th 968, 994.) "A demurrer tests the pleadings alone and not the

evidence or other extrinsic matters. The only issue involved in a demurrer

hearing is whether the complaint, as it stands, unconnected with extraneous

matters, states a cause of action." (Hahn (2007) 147

Cal.App.4th at 747.)

;

When considering demurrers, courts read the allegations

liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center

(2015) 236 Cal.App.4th 1401, 1406.) Courts also consider exhibits attached to

the complaint and incorporated by reference. (See Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94 (Frantz).)

Demurrer

– Uncertainty

CCP § 430.10(f) provides that a party may

demurrer to a pleading because: "The pleading is uncertain. As used in

this subdivision, "uncertain" includes ambiguous and unintelligible."

However, "demurrers for uncertainty are

disfavored, and are granted only if the pleading is so incomprehensible that a

defendant cannot reasonably respond." (Morris

v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) "A demurrer

for uncertainty is strictly construed, even where a complaint is in some

respects uncertain, because ambiguities can be clarified under modern discovery

procedures." (Chen v. Berenjian

(2019) 33 Cal.App.5th 811, 822.) "A demurrer for uncertainty should be overruled when the facts as to which the complaint is uncertain are presumptively within the defendant's knowledge." (Ibid.)

ANALYSIS:

Defendant contends they are unable to provide an intelligent response to the allegations and cannot discern what affirmative defenses are applicable and/or available to them due to Plaintiff's narrative without articulated causes of action or relief demands.

Plaintiff did not file an opposition.

After reviewing the complaint, the court agrees with Defendant that it is uncertain. Notably, there is no cause of action plead to apprise Defendant as to Plaintiff's theory of liability. (CCP § 425.10(a)(1); See also CRC, rule 2.112.) What is more, the complaint lacks a prayer for relief which also leaves Defendant guessing as to what Plaintiff seeks. (CCP § 425.10(a)(2).) These are curable defects.

Accordingly, the court SUSTAINS Defendant's demurrer to the entire complaint with leave to amend.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Demurrer

to the entire complaint is SUSTAINED with leave to amend;

2. Plaintiff

shall file their amended complaint within 21 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 8, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court